Strategic Legal Analysis: Cross-Border Litigation for Breach of Contract, Harassment, and Asset Recovery in the High Court of Justice

1. Executive Summary

This report constitutes a comprehensive legal opinion and strategic roadmap for a proposed high-value multi-cause action to be commenced in the High Court of Justice, Business and Property Courts of England and Wales. The Claimant, a British and Irish national and software engineer, seeks damages against the Defendant, an Irish national domiciled in Portugal (alleged CEO of two prominent cryptocurrency entities), for breach of contract, harassment, disability discrimination, and personal injury. The complexity of this case arises from the intersection of informal digital contracting, cross-border jurisdictional nuances post-Brexit, and the unique asset class of cryptocurrency.

The factual matrix reveals a hybrid relationship that transitioned from a purported friendship into a commercial arrangement and ultimately descended into an abusive dynamic characterised by coercive control and professional disparagement. The central legal challenge lies in rebutting the presumption of social relations to establish a binding commercial contract and navigating the post-Brexit jurisdictional landscape to anchor the claim in London despite the Defendant's Portuguese domicile.

The analysis concludes that the English Courts are the optimal forum, obtainable primarily through **transient jurisdiction** by serving the Defendant during his frequent visits to the jurisdiction (e.g., at a luxury hotel in Mayfair). The claim for breach of contract is viable, supported by recent case law validating WhatsApp agreements (*Jaevee Homes Ltd v Fincham*), though the "perpetuity" clause regarding profit share requires careful construction to avoid voidance for uncertainty. The tortious claims for harassment and psychiatric injury are robust, leveraging the "eggshell skull" rule to maximize damages for the exacerbation of the Claimant's pre-existing Complex Post-Traumatic Stress Disorder (CPTSD).

Furthermore, the report outlines aggressive asset preservation strategies, including Worldwide Freezing Orders (WFO) targeting cryptocurrency assets and potential leverage through regulatory reporting of admitted tax evasion to His Majesty's Revenue and Customs (HMRC) and the Portuguese *Autoridade Tributária e Aduaneira* (AT). The Defendant's explicit written admissions regarding asset concealment provide the evidentiary foundation necessary to secure draconian interim relief.

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2. Factual Matrix and Legal Characterisation

A rigorous characterisation of the facts is essential to survive the initial hurdles of jurisdiction and summary judgment. The Claimant's case is not merely a dispute between friends but a breakdown of a sophisticated commercial arrangement involving intellectual property transfer and service provision.

2.1. The Commercial Agreement (The "Investment")

The relationship, while originating in friendship, crystallised into a commercial agreement via a series of WhatsApp exchanges. The Claimant, a software engineer, agreed to provide technical services—specifically developing data engineering pipelines and Python-based infrastructure for cryptocurrency trading—in exchange for "financial support until September 2026" and a "5-10% profit share in perpetuity".[1]

The Defendant, acting in his capacity as a CEO/founder of major crypto entities, explicitly framed the financial transfers as an "investment" rather than a gift. The chat logs confirm this commercial intent: the Defendant refers to the arrangement as an "investment" and links the provision of hardware (a MacBook) to the expectation of "returns" and "cooking" (producing code).[1] This shift from social benevolent support to a conditional, performance-based exchange is the pivot point for legal classification. The Defendant's subsequent attempt to reframe the support as a "gift" or the result of "extortion" is contradicted by his own demands for professional output ("trust me I'm cooking," "premature optimisation").[1]

2.2. The Breach and Tortious Conduct

Following a technical disagreement regarding the "Mojo" programming language versus Python, the Defendant unilaterally terminated the financial support and engaged in a "course of conduct" comprising:

- **Professional Disparagement:** Use of terms such as "rookie" and "big yikes" to describe the Claimant's high-level coding work, directly impacting his professional standing and self-efficacy.[1]
- **Disability Harassment:** Weaponising the Claimant's known brain injury and CPTSD with slurs like "retard," "cripple," and mocking the injury as a "cerebral license".[1]
- **Coercive Control:** Leveraging the debt (~£2.5k / €20k) to demand acts of contrition (writing a letter to his sister) under threat of total ostracisation.[1]
- **Physical Assault:** A specific incident in Galway involving a "neck grab," which triggered severe CPTSD flashbacks due to the Claimant's history of domestic violence.[1]

2.3. Admissions of Fraud

Crucially, the Defendant has admitted in writing to hiding income and assets (specifically gold) to evade taxes, quantifying a potential fraud of €600,000.[1] These admissions are not merely prejudicial; they are central to the application for a freezing injunction, as they demonstrate a propensity to dissipate assets and evade legal obligations.

3. Jurisdictional Strategy and Procedural Gateways

Establishing the jurisdiction of the English courts is the foundational hurdle in this litigation. Since the end of the Brexit transition period on 31 December 2020, the Recast Brussels Regulation no longer applies to the UK, removing the automatic right to sue an EU-domiciled defendant in their home state or relying on EU-wide *lis pendens* rules.[2] The Claimant must instead rely on English common law rules, which offer distinct strategic advantages if managed correctly.

3.1. Primary Strategy: Transient Jurisdiction (Service within the Jurisdiction)

The most effective method to establish jurisdiction over the Defendant—and to bypass the complex and discretionary "permission to serve out" process—is to effect **personal service** of the Claim Form while the Defendant is physically present in England.[4] This strategy, often referred to as "tag jurisdiction," leverages the Defendant's known habits.

3.1.1. Legal Basis and Case Law

Under English common law, the court has jurisdiction over any defendant who is served with process while physically present within the territory of England and Wales, regardless of the brevity of their stay or the purpose of their visit. This principle was famously affirmed in *Maharanee of Baroda v Wildenstein* 2 QB 283, where service on a defendant visiting Ascot races was deemed valid.

Post-Brexit, this rule remains a cornerstone of English procedural law. The Defendant's documented habit of staying at high-end establishments in Mayfair and visiting major electronics retailers in London [1] provides a predictable window for service. Unlike the Brussels regime, which rigidly favoured domicile, the common law favours presence.

3.1.2. Procedural Execution

To execute this, the Claimant must issue the Claim Form and retain professional process servers to effect personal service during one of the Defendant's visits.

- **Mechanism:** The documents must be handed to the Defendant personally. If he refuses to accept them, they may be left near him after he has been informed of their nature (CPR 6.5).[5]
- **Hotel Service:** Service at a hotel requires precision. Process servers often wait in the lobby or public areas. While the hotel staff cannot accept service on a guest's behalf unless authorized, the physical presence of the Defendant in the lobby constitutes presence within the jurisdiction. The chat logs indicate the Defendant provides notice of his arrival ("Hi, in London. Nearly at hotel") [1], which facilitates timing.
- **Strategic Advantage:** Service within the jurisdiction establishes jurisdiction *as of right*. It shifts the burden onto the Defendant to prove that England is clearly *not* the appropriate

forum (*forum non conveniens*), rather than the Claimant having to prove it *is*.[4] This reversal of the burden of proof is a critical tactical advantage.

3.2. Secondary Strategy: Service Out of the Jurisdiction (The "Gateways")

If personal service in England proves impossible (e.g., if the Defendant ceases travel to the UK), the Claimant must apply for permission to serve the proceedings in Portugal under **Civil Procedure Rule (CPR) 6.36**. This requires satisfying three criteria:

1. **Serious Issue to be Tried:** The claim has a realistic prospect of success.
2. **Good Arguable Case for a Gateway:** The claim falls within one of the jurisdictional "gateways" in CPR Practice Direction 6B.
3. **Forum Conveniens:** England is the proper place to bring the claim.[3]

3.2.1. Gateway 6: Contracts Made or Breached Within the Jurisdiction

The contract for software services was formed via verbal discussions and WhatsApp messages.

- **Formation Gateway (PD 6B para 3.1(6)(a)):** Jurisdiction exists if the contract was "made within the jurisdiction". Given the itinerant nature of the parties (Claimant in UK/Ireland, Defendant in Portugal/UK), this is contentious. However, legal analysis suggests that if the acceptance of the offer (the "deal") occurred while the Claimant was in London—specifically during the meeting at the hotel or the subsequent walk to the electronics store where the "investment" (laptop) was purchased—the contract is deemed made in England.[6] The "receipt rule" regarding instant communications (*Entores v Miles Far East Corp*) dictates that the contract is formed where the acceptance is received. If the Defendant was in London when he received the Claimant's acceptance of the terms, the contract is English.
- **Breach Gateway (PD 6B para 3.1(7)):** Jurisdiction exists if the breach of contract occurred in England. The breach consists of the failure to provide the agreed financial support and profit share. In English law, debts are typically payable at the creditor's residence unless otherwise specified. Since the Claimant is resident in London and utilizes UK banking facilities (Revolut/UK banks), the failure to pay constitutes a breach within the jurisdiction.[7] The chat logs confirming the "funds hit the bank" [1] reinforce the expectation of payment into a specific account, locating the breach in England.

3.2.2. Gateway 9: Tort (Harassment and Personal Injury)

For the harassment and personal injury claims, the relevant gateway is **PD 6B para 3.1(9)**.

- **Damage Sustained Within the Jurisdiction:** The Supreme Court decision in *Brownlie v FS Cairo (Nile Plaza) LLC* UKSC 45 clarified that "damage" includes significant physical or psychiatric injury sustained in England, even if the initial act occurred elsewhere.[8] The Claimant's psychiatric injury—the exacerbation of CPTSD and the "hindered ability to code"—was sustained and suffered in London. The inability to work, leading to financial loss, is a direct consequential damage suffered within the jurisdiction.

- **Acts Committed Within the Jurisdiction:** The electronic messages constituting harassment were received and read by the Claimant in London. The statutory tort of harassment under the **Protection from Harassment Act 1997** focuses on the effect on the victim; thus, the tort is arguably committed where the messages are received and cause alarm or distress.[9]

3.3. Forum Non Conveniens Analysis

The Defendant will likely argue that Portugal (his domicile) is the appropriate forum to hear the dispute. To defeat this, the Claimant must demonstrate that England is the "clearly appropriate" forum (*Spiliada Maritime Corp v Cansulex Ltd*).

Factor	Analysis Favoring England
Governing Law	Under Rome I Regulation, the contract for services is governed by the law of the country where the service provider (Claimant) has their habitual residence.[3] As the coding work was performed in London, English law applies. English courts are best placed to apply English law.
Location of Harm	The psychiatric damage and professional economic loss (career impact) occurred in London. The tort of harassment via digital means is centered where the victim receives the abuse.
Language	All evidence (WhatsApp chats, technical documents, medical records) is in English. Conducting proceedings in Portugal would require translating thousands of pages, causing disproportionate cost and delay.
Witnesses	Expert witnesses (psychiatrists treating the Claimant's CPTSD and brain injury) are UK-based. Compelling them to testify in Portugal is impractical.
Asset Location	While the Defendant is domiciled in Portugal, his assets (crypto) are inherently borderless, and he has admitted to hiding assets. The English court's robust freezing order regime is better suited to tracing these than Portuguese civil procedure.

Conclusion on Jurisdiction: The Claimant has a formidable case for English jurisdiction. The "Hotel Trap" (personal service in London) is the recommended tactical first strike to secure jurisdiction as of right, rendering the complex *forum non conveniens* arguments a secondary

defensive line for the Defendant rather than a primary hurdle for the Claimant.

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4. The Contractual Claim: From "Social Help" to Commercial Agreement

The Defendant has attempted to characterise the financial transfers (€20k) as a gift or extortion, thereby negating contractual liability. The Claimant must rigorously prove the existence of a binding commercial contract.

4.1. Formation and Validity of Electronic Contracts

The informal nature of the agreement (WhatsApp/verbal) does not preclude its enforceability. The High Court in *Jaevee Homes Ltd v Fincham* EWHC 942 (TCC) firmly established that WhatsApp messages can constitute binding commercial contracts provided the essential elements—offer, acceptance, consideration, and intent—are present.[10]

- **Offer and Acceptance:** The chat logs [1] reveal a clear exchange. The Claimant offered technical services ("data engineering pipeline," "coding stacks") and proposed terms: "Do you want 10% of my future income in perpetuity? That's a good deal for helping me survive this year." The Defendant accepted this by performance ("funds hit the bank") and explicit affirmation ("Yes").
- **Consideration:** There is mutual consideration. The Claimant provided technical expertise and a share of future income. The Defendant provided capital (£2.5k / €20k) and hardware (MacBook).
- **Performance:** The Defendant's provision of the laptop and funds was not a standalone gift but "investment" in the Claimant's capacity to produce code ("cooking"). This performance validates the existence of the contract.

4.2. Rebutting the "Social/Domestic" Presumption

In agreements between friends, English law presumes there is no intention to create legal relations (*Balfour v Balfour*). This presumption must be rebutted by evidence of commercial intent.

- **Commercial Subject Matter:** The agreement concerned high-level cryptocurrency trading software ("Mojo", "DeFi yield analysis"). This is inherently commercial, distinct from domestic arrangements.[12]
- **Capacity of Parties:** The Defendant acted as a CEO, instructing the Claimant on technical choices (Mojo vs Python) and demanding "returns" and profit-making strategies for his companies. He treated the Claimant as a subordinate or contractor ("rookie work," "premature optimisation"), not a friend receiving charity.
- **Scale of Investment:** The sum of €20,000 is significant. The Defendant’s message "I’m really on the edge of letting you go... we’re at 20k euros" [1] implies a transactional relationship that can be terminated for non-performance, characteristic of employment

or service contracts.

4.3. The "Perpetuity" and "Profit Share" Clauses

The verbal term "5-10% profit share in perpetuity" faces challenges regarding **certainty** and **enforceability**. Courts are reluctant to enforce perpetual obligations in commercial contracts, often implying a right to terminate on reasonable notice (*Zaha Hadid Ltd v Zaha Hadid Foundation*).[13]

- **Uncertainty Argument:** The Defendant may argue "5-10%" is a range and therefore void for uncertainty.
- **Legal Counter-Argument:** The court strives to uphold bargains (*Hillas & Co Ltd v Arcos Ltd*). Where a range is given, the court may determine a "reasonable" figure (typically the lower bound, 5%) or apply a *quantum meruit* analysis to value the services rendered.
- **Construction of "Perpetuity":** Instead of a literal "forever," the court is likely to construe this as a right to profit share for the **lifecycle of the software developed** or a capitalized lump sum representing the value of the IP contributed. The Claimant should plead for a valuation of the software's potential earnings to crystallize this "perpetuity" into a fixed damages figure.

4.4. Promissory Estoppel

The Claimant relied on the Defendant's assurance of "financial support until September 2026" to sign a lease. When the Defendant withdrew support, the Claimant suffered detriment (risk of homelessness).

- **Shield vs. Sword:** Under English law (*Combe v Combe*), promissory estoppel is generally a "shield" (defence), not a "sword" (cause of action).[14] The Claimant cannot sue *solely* on estoppel to demand the funds.
- **Strategic Use:** Estoppel can be used to prevent the Defendant from asserting that the contract was terminable at will. It supports the breach of contract claim by proving reliance and making it inequitable for the Defendant to deny the existence of the long-term commitment. Alternatively, a claim in **negligent misstatement** (tort) may be viable if the Defendant made assurances he knew the Claimant would rely on to his detriment.

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5. Tortious Claims: Harassment, Discrimination, and Personal Injury

The Defendant's conduct extends beyond contractual breach into actionable torts. The evidence of "severe psychological abuse," disability slurs, and physical intimidation supports substantial claims for non-pecuniary damages.

5.1. Harassment (Protection from Harassment Act 1997)

The Protection from Harassment Act 1997 (PHA) creates a statutory tort for a "course of

conduct" which causes alarm or distress.

- **Course of Conduct:** The chat logs reveal a sustained campaign of abuse: "scumbag," "retard," "born a victim," "write a letter or we never speak again".[1] This meets the threshold of "oppressive and unreasonable" conduct (*Majrowski v Guy's and St Thomas's NHS Trust*).
- **Jurisdiction:** As established in *Lawal v Adeyinka*, the tort of harassment is committed where the *impact* is felt. Since the Claimant received these messages in London and suffered distress there, the English court has jurisdiction.[9]
- **Remedies:** The Act allows for damages for anxiety and financial loss, as well as an injunction to restrain further harassment.

5.2. Disability Discrimination (Equality Act 2010)

The Claimant has a disability (CPTSD/Brain Injury). The Defendant, acting as a "principal" hiring a "contract worker" (freelancer), is prohibited from discriminating under **Section 41 of the Equality Act 2010**.[15]

- **Harassment (s.26 EqA):** The use of terms like "retard" and mocking the brain injury ("cerebral license") constitutes unwanted conduct related to a protected characteristic, violating the Claimant's dignity and creating a hostile environment.[16]
- **Disability Related Discrimination (s.15 EqA):** The Defendant treated the Claimant unfavourably (withdrawing support, disparagement) because of something arising from his disability (the "impulsivity" of contacting the sibling, which the Claimant explicitly linked to his brain injury symptoms in the chat [1]).
- **Commercial Context:** By framing the relationship as a "job" or "investment," the Defendant opened himself to liability under the Equality Act. If he argues it was purely social, this claim falls away, but the evidence of work strongly supports the "contract worker" status.

5.3. Personal Injury and the "Eggshell Skull" Rule

The Claimant alleges the abuse "hindered ability to code" and exacerbated his CPTSD.

- **Causation:** The Defendant must "take his victim as he finds him" (*Smith v Leech Brain*). Even if the Claimant was pre-disposed to fragility due to prior trauma (domestic violence), the Defendant is liable for the *full extent* of the aggravation caused by his tortious conduct.
- **Divisibility:** The court will attempt to divide the injury between the pre-existing condition and the aggravation. Expert psychiatric evidence will be critical to quantify the "acceleration" or "exacerbation" period.[17]
- **The Galway Assault:** The "neck grab" in Galway is a battery. While occurring outside the jurisdiction, it serves as powerful evidentiary context for the harassment claim. It proves the threat of violence was credible ("have you sorted") and intensifies the psychological impact of the subsequent messages, anchoring the fear component of the harassment claim.

6. Quantification of Damages

The claim value is substantial, comprising distinct heads of loss across contract and tort.

6.1. Contractual Damages

- **Expectation Loss:** The value of financial support until September 2026. If the monthly support was approximately £2,000 (implied by the £20k total over a short period), the remaining term (approx. 18 months from breach) is worth **£36,000**.
- **Profit Share:** 5-10% of the software's value. If the software relates to the Defendant's strategies handling millions, this head of loss could range from **£50,000 to £500,000+**, depending on expert valuation of the IP contributed.

6.2. Personal Injury and Harassment Damages

- **General Damages (PSLA):**
  - **Psychiatric Injury:** Under the *Judicial College Guidelines (17th Edition)*, "Moderately Severe" psychiatric damage (impacting work/relationships but with some recovery) attracts awards of **£19,070 to £54,830**. "Severe" damage (permanent impact) ranges from **£54,830 to £115,730**.[18] Given the "hindered ability to code" and impact on a high-earning career, the Claimant should aim for the upper bracket.
- **Injury to Feelings (Vento Bands):** For discrimination claims:
  - **Upper Band (£33,700 - £56,200):** Appropriate for lengthy campaigns of harassment. The sustained nature of the abuse (disability slurs, threats) places this in the middle-to-upper band.[19]

6.3. Special Damages (Pecuniary Loss)

- **Loss of Earnings:** A software engineer in the crypto/finance sector commands high day rates (£500-£1,000/day). If the psychological injury prevents working for 1-2 years, loss of earnings could exceed **£150,000 - £250,000**.
- **Career Damage:** The disparagement ("rookie", "big yikes") within a small niche industry (crypto dev) can cause long-term reputational damage, quantifiable as "loss of chance" for future contracts.

6.4. Aggravated and Exemplary Damages

- **Aggravated Damages:** Awarded for injury to feelings caused by the *manner* of the wrong (e.g., malice, spite). The Defendant's conduct—mocking a brain injury, threatening to "have him sorted," and weaponizing the debt—justifies an additional award, typically **£5,000 - £15,000**.[20]
- **Exemplary Damages:** Rare, but possible if the Defendant calculated that his profit from the conduct (e.g., retaining the software IP without paying) would exceed any

compensation paid.

Head of Loss	Estimated Range (£)
Contractual Support (to Sep 2026)	£36,000 - £40,000
Profit Share (IP Valuation)	£50,000 - £500,000+
General Damages (Psychiatric)	£54,000 - £115,000
Injury to Feelings (Discrimination)	£33,000 - £56,000
Loss of Earnings (Special Damages)	£150,000 - £250,000
Aggravated Damages	£10,000 - £15,000
Total Estimated Quantum	**£333,000 - £1,000,000+**

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7. Asset Recovery and Enforcement Strategy

The Defendant has admitted to "hiding income/assets like gold" and tax evasion. This admission is the Claimant's most potent leverage for securing assets before they disappear.

7.1. Pre-Judgment Security: The Freezing Order (Mareva Injunction)

To prevent the Defendant from dissipating assets (especially liquid crypto and gold) before judgment, the Claimant should apply for a **Worldwide Freezing Order (WFO)**.

- **Legal Test:** The applicant must show: (1) A good arguable case, and (2) A real risk of dissipation. The Defendant's admission of "hiding assets" and tax evasion is "solid evidence" of a risk of dissipation, satisfying the high threshold required by English courts.[21]
- **Crypto Assets:** English courts recognize crypto as "property" (*AA v Persons Unknown*) and can grant WFOs specifically over crypto wallets. The court can order the Defendant to disclose wallet keys or transfer assets to a court-controlled wallet.[22]
- **Gold:** The WFO can extend to physical chattels (gold bars) held in any jurisdiction.

7.2. Disclosure Orders

- **Norwich Pharmacal / Bankers Trust Orders:** If the Defendant refuses to disclose asset locations, the Claimant can seek orders against third-party exchanges (e.g., Binance, Coinbase) or banks to reveal account details. New gateways in PD 6B allow service of these orders out of the jurisdiction more easily.[23]

7.3. Enforcement in Portugal (Post-Judgment)

Once a London judgment is obtained, it must be enforced in Portugal.

- **Hague 2019 Convention:** The UK ratified this convention, and it comes into force on **1 July 2025**.[24] If proceedings are commenced *after* this date, the judgment will be enforceable in Portugal under this streamlined framework. If commenced before, enforcement relies on Portuguese domestic law (review and confirmation process), which is slower but viable.
- **Assets in Portugal:** The judgment can be enforced against the Defendant's Portuguese

property (real estate) and bank accounts via the Portuguese court system (*exequatur*).

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8. The Leverage of Tax Evasion

The Defendant's admission of tax evasion (€600k fraud) is a "nuclear" option for settlement leverage.

8.1. Reporting to HMRC (UK)

If the Defendant is a "frequent visitor" to the UK and conducts business there, he may be tax resident or have UK tax liabilities.

- **Whistleblower Reward:** HMRC has launched a new reward scheme paying **15-30%** of tax recovered for high-value evasion (>£1.5m). While the €600k figure is below this threshold, the investigation could uncover larger sums given the crypto context.[25]
- **Reporting:** Can be done anonymously via the HMRC Fraud Hotline.

8.2. Reporting to Autoridade Tributária (Portugal)

Portugal has strict anti-tax fraud laws.

- **Whistleblowing:** Under Law no. 93/2021 (EU Whistleblowing Directive), reports can be made regarding tax evasion. While anonymous reporting is complex, it can be done via the *Portal das Finanças* (e-balcão) or via email (at@at.gov.pt).[26]
- **Impact:** A tax investigation in Portugal would freeze the Defendant's assets and likely precipitate a settlement to avoid criminal liability. The threat of this (carefully phrased to avoid blackmail accusations, e.g., "I reserve my right to comply with all legal reporting obligations") is significant leverage.

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9. Conclusion and Strategic Recommendations

The Claimant possesses a strong, albeit complex, case. The Defendant's arrogance in admitting to asset hiding and harassment in writing has provided the evidentiary keys to his own liability. The combination of **transient jurisdiction** (service in London) and the Defendant's own **admissions of asset hiding** creates a formidable legal position.

Action Plan:

1. **Serve in London:** Hire a process server to track the Defendant's next visit to the luxury hotel in Mayfair. Serve the Claim Form personally to anchor jurisdiction.
2. **Apply for WFO:** Immediately apply for a Worldwide Freezing Order (without notice) citing the admission of asset hiding as proof of dissipation risk.
3. **Frame as Commercial:** Plead the contract as a B2B agreement for software development to trigger contractual certainty and Equality Act protections.
4. **Maximize Damages:** Commission expert psychiatric reports to link the CPTSD exacerbation directly to the career loss, pushing the claim value into the hundreds of

thousands.

5. **Settlement Leverage:** Prepare the draft Particulars of Claim detailing the tax evasion admissions. Serve this on the Defendant with a "without prejudice save as to costs" settlement offer, highlighting the inevitability of regulatory scrutiny if the matter proceeds to a public trial.

By executing this strategy, the Claimant converts a vulnerable position into one of dominant legal strength, utilizing the English courts' robust mechanisms for fraud and asset recovery to secure justice.

Relevant Legislation and Case Law

- *Jaevee Homes Ltd v Fincham* (WhatsApp Contracts)
- *Brownlie v FS Cairo (Nile Plaza) LLC* (Tort Jurisdiction)
- *AA v Persons Unknown* (Crypto as Property)
- *Protection from Harassment Act 1997*
- *Equality Act 2010* (s.41 Contract Workers)
- *Hague Judgments Convention 2019*

(End of Report)

Detailed Analysis Sections

1. Jurisdiction: The "Gateway" to Justice

The first and most critical battleground is jurisdiction. Without it, the English courts cannot hear the case. The Defendant is domiciled in Portugal, an EU member state. Post-Brexit, the "Brussels Recast" regulation—which generally required suing a defendant in their home state—no longer applies to the UK. This forces reliance on English common law rules, which actually offer the Claimant **greater flexibility** in this specific scenario.

1.1. Transient Jurisdiction: The "Hotel Trap"

English common law maintains the ancient rule of "transient jurisdiction." If a defendant is served with a Claim Form while physically present in England—even for a fleeting visit—the English court establishes jurisdiction as of right.

- **Case Law:** *Maharanee of Baroda v Wildenstein* 2 QB 283. The defendant was served with a writ while visiting Ascot races. The court held this was valid service establishing jurisdiction.
- **Application:** The Defendant visits London frequently and stays at a specific luxury hotel in Mayfair.[1] The Claimant should issue the Claim Form and employ a professional process server. The moment the document touches the Defendant's hand (or is dropped at his feet) in the lobby of the hotel, jurisdiction is secured.
- **Why this is superior:** It avoids the costly and slower process of asking the court for "permission to serve out" of the jurisdiction. It immediately places the burden on the Defendant to argue that England is *not* the appropriate forum (*forum non conveniens*), a

difficult argument when the Claimant is resident here, the harm occurred here, and the contract was performed here.

1.2. The "Gateways" (If Service in London Fails)

If personal service fails, the Claimant must use the "long-arm" jurisdiction gateways under **Practice Direction 6B**.[6]

- **The Contract Gateway (Gateway 6):** A claim can be brought if the contract was "made" in England or "breached" in England.
  - *Made in England:* If the final agreement (acceptance of terms) happened during a call or message while the Claimant was in England, the contract is arguably made there.
  - *Breached in England:* The breach is the failure to pay money. The general rule is that the debtor must seek out the creditor. Since the Claimant's bank account (Revolut/UK Bank) is in England, the breach (non-payment) occurred in England.
- **The Tort Gateway (Gateway 9):**
  - *Damage Sustained:* The Supreme Court in *Brownlie* [8] confirmed that "damage" includes the physical or psychiatric effects felt by the victim. The Claimant's CPTSD exacerbation and loss of coding ability (economic loss) were sustained in London.
  - *Act Committed:* The harassment consists of messages received and read in London.

2. Establishing the Commercial Contract

The Defendant will likely argue that the €20k was a gift between friends, not a contract. To win, the Claimant must prove **Intention to Create Legal Relations**.

2.1. The "Rebuttable Presumption"

In social relationships, courts presume no legal intent. This can be rebutted by:

- **Commercial Subject Matter:** The agreement wasn't for domestic chores; it was for high-level software engineering ("Mojo", "Python", "DeFi"). This is inherently commercial work.
- **Mutuality of Obligation:** The chat shows a *quid pro quo*. Eric provided money; Cian provided code/knowledge.
- **Language:** The use of terms like "investment," "profit share," "perpetuity," and "funds hit the bank" [1] signals a business arrangement. *Jaevee Homes v Fincham* confirms that informal WhatsApp language ("mate", "bro") does not negate the binding nature of the agreement if the core elements are present.[10]

2.2. The Terms: "Support" and "Profit Share"

- **Certainty of Terms:** "Financial support until September 2026" is sufficiently certain—it implies a monthly stipend or lump sum to cover living costs.
- **Profit Share:** "5-10% profit share" is a range. Courts often enforce the minimum (5%) to save the contract from uncertainty.

- **Perpetuity:** A contract "in perpetuity" is legally disfavored. The court will likely interpret this as either:
    1. A right to terminate on reasonable notice (e.g., 12 months).
    2. A royalty stream for the lifespan of the IP created.
       The Claimant should argue for the latter: the code continues to generate value, so the 5% share should continue.

3. The Tort Claims: High-Value Damages

3.1. Harassment

The chat logs provide a "smoking gun." The Protection from Harassment Act 1997 prohibits a course of conduct that causes alarm or distress.

- **Conduct:** "Retard," "victim," "have you sorted".[1] This is not just unpleasant; it is oppressive.
- **Damages:** Courts award damages for anxiety and financial loss resulting from the harassment. If the harassment caused the Claimant to be unable to work (psychiatric injury), the Defendant is liable for the lost income.

3.2. Disability Discrimination

This is a sophisticated angle. The Claimant was a "contract worker" (freelancer).

- **Section 41 Equality Act 2010:** Prohibits a principal from harassing a contract worker.
- **The Act:** Mocking a brain injury ("cerebral license") and calling the Claimant a "cripple" or "retard" is classic disability harassment.
- **Vento Bands:** Compensation for "injury to feelings" in discrimination cases is set by the *Vento* bands. This case likely falls in the **Middle to Upper Band (£30k - £50k+)** due to the severity and personal nature of the attacks.[27]

4. Asset Recovery: The "Nuclear Weapons" of Litigation

The Defendant has assets but is hiding them. English law provides powerful tools to uncover and freeze them.

4.1. The Worldwide Freezing Order (WFO)

The Claimant can apply for a WFO to freeze the Defendant's assets globally up to the value of the claim.

- **Trigger:** The Defendant *admitted* to tax evasion and hiding assets ("gold") in the chats. This is a "solid evidence" of a risk of dissipation, which is usually the hardest thing to prove. The Defendant effectively handed the Claimant the keys to a WFO.
- **Crypto:** The order can specifically target crypto wallets. If the Defendant refuses to provide the private keys, he is in contempt of court (punishable by imprisonment).

4.2. Tax Leverage

The admission of "€600k tax fraud" is strategic gold.

- **Discovery:** The Claimant can use the litigation disclosure process to force the Defendant to reveal his true financial position.

- **Settlement:** The Defendant will likely be desperate to avoid a public judgment that details his tax evasion, as this would alert tax authorities. This pressure often forces a settlement before trial.

5. Conclusion: A Winning Strategy

The Claimant should not be intimidated by the "social" defence or the foreign domicile. The combination of **transient jurisdiction** (service in London) and the Defendant's own **admissions of asset hiding** creates a formidable legal position. By aggressively pursuing the WFO and pleading the "commercial" nature of the tech work, the Claimant can secure jurisdiction, freeze assets, and likely force a substantial settlement.

Next Steps:

1. **Instruction:** Retain a solicitor specializing in commercial fraud and litigation.
2. **Surveillance:** Ascertain the Defendant's next London visit dates (likely for crypto conferences or business).
3. **Drafting:** Prepare the Claim Form and Particulars of Claim, pleading Breach of Contract, Harassment, and Discrimination.
4. **Application:** Prepare the *ex parte* application for a Worldwide Freezing Order.

The law is on the Claimant's side; it simply requires the strategic application of these "nuclear" procedural tools.

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